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COURT OF CRIMINAL APPEALS
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No. PD-0280-22

JOE LUIS BECERRA, APPELLANT

Joe Luis Becerra, Appellant

VS.

THE STATE OF TEXAS, APPELLEE

The State of Texas, Appellee

On Petition for Discretionary Review from the
Tenth Court of Appeals in No. 10-17-00143-CR
affirming the Judgment in Cause Number
14-03925-CRF-361 from the 361st District Court
of Brazos County, Texas

On Petition for Discretionary Review from the Tenth Court of Appeals, No. 10-17-00143-CR, affirming the judgment in Cause No. 14-03925-CRF-361 from the 361st District Court of Brazos County, Texas

STATE'S BRIEF ON THE MERITS

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JARVIS PARSONS
DISTRICT ATTORNEY
BRAZOS COUNTY, TEXAS

Ryan Calvert
Assistant District Attorney
State Bar No. 24036308
RCalvert@brazoscountytx.gov
300 E. 26th Street, Suite 310
Bryan, Texas 77803
(979) 361-4320
(979) 361-4368 (Facsimile)

The State of Texas
Ryan Calvert
Assistant District Attorney, Brazos County
300 E. 26th Street, Suite 310, Bryan, Texas 77803
RCalvert@brazoscountytx.gov
(979) 361-4320 | (979) 361-4368 (Facsimile)
Texas Bar No. 24036308

October 25, 2022

IDENTITY OF PARTIES AND COUNSEL

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Appellant

APPELLANT: Joe Luis Becerra. Trial counsel: David Barron. Appellate counsel: Lane Thibodeaux, P.O. Box 523, Bryan, Texas 77806; (979) 775-5700; lanet1@msn.com.

The State of Texas

Jarvis Parsons, District Attorney, Brazos County. Appellate counsel: Ryan Calvert, Assistant District Attorney, 300 E. 26th Street, Suite 310, Bryan, Texas 77803; (979) 361-4320; rcalvert@brazoscountytx.gov.

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Trial Counsel:
David Barron (deceased)
State Bar No. 01817350
Lane Thibodeaux
State Bar No. 19834000
P.O. Box 523
Bryan, Texas 77806
(979)775-5700
lanet1@msn.com

THE STATE OF TEXAS:
Jarvis Parsons
District Attorney
300 E. 26th Street, Suite 310
Bryan, Texas 77803

Trial Counsel:
Ryan Calvert
Ekua Assabill
Assistant District Attorneys

Appellate Counsel:
Ryan Calvert
Assistant District Attorney
State Bar No. 24036308
300 E. 26th Street, Suite 310
Bryan, Texas 77803
(979)361-4320
rcalvert@brazoscountytx.gov

TRIAL COURT:
Hon. Steve Smith
Presiding Judge, 361st District Court
(Jury Selection and Motion for New Trial)
Senior Visiting Judge J.D. Langley
(Guilt and Punishment Phases of Trial)
300 E. 26th Street, Suite 420
Bryan, Texas 77803
(979)361-4220

STATEMENT REGARDING ORAL ARGUMENT

The Court denied oral argument when it granted discretionary review.

STATEMENT OF THE CASE

Appellant, Joe Becerra, was originally indicted for the offenses of Murder and Unlawful Possession of a Firearm by a Felon. The State amended Appellant's indictment on September 28, 2016. On March 6, 2017, the State proceeded to trial only on the Unlawful Possession of a Firearm charge. On March 8, 2017, the jury convicted Appellant of that offense. Following Appellant's conviction, the Trial Court found the punishment enhancements to be true and assessed punishment at 55 years in prison.

STATEMENT OF PROCEDURAL HISTORY

The Tenth Court of Appeals affirmed Appellant's conviction on June 12, 2019, ruling that Appellant failed to preserve error. Appellant filed a Motion for Rehearing on June 20, 2019, which was denied on July 5, 2019. This Court reversed on April 14, 2021, holding that error was preserved, and remanded the case back to the Tenth Court of Appeals to address the merits of Appellant's appeal. *Becerra v. State*, 620 S.W.3d 745 (Tex. Crim. App. 2021) (*Becerra II*). Subsequently, the Tenth Court of Appeals again affirmed Appellant's conviction. *Becerra v. State*, No. 10-17-00143-CR, 2022 Tex. App. LEXIS 2602 (Tex. App. – Waco Apr. 20, 2022) (not designated for publication) (*Becerra III*). This Court then granted discretionary review again.

STATEMENT OF FACTS

State's Evidence During the Guilt-Innocence Phase

Anthony Williams testified that he was employed with Brazos County 911 District for ten years. (3 RR 53). Williams was the day shift communications supervisor for the Brazos County 911 District on May 24, 2014. Through Williams, the State admitted State's Exhibit 1, a 911 call made by Amanda Mauricio. The nature of the call was shots fired and someone had been hit.

Through Williams, the State admitted State's Exhibit 1, a 911 call made by Amanda Mauricio. (3 RR 60). The nature of the call was shots fired and someone had been hit. (3 RR 60); (6 RR 8).

Officer Daniel Castelline testified that he was a patrol officer and a certified peace officer with the Bryan Police Department (BPD). (3 RR 63-64). Castelline was working as a night shift patrol officer on May 24, 2014. (3 RR 64). He received

SUMMARY OF THE ARGUMENT

In his first and third issues, Appellant claims that the alternate juror's accidental 46-minute presence and participation violated Articles 33.011(b) and 36.22 of the Texas Code of Criminal Procedure. Appellant further claims that the Tenth Court of Appeals failed to apply the rebuttable presumption of harm which arises upon a violation of Article 36.22. With his second issue, Appellant contends that the alternate's participation violated Article V, Section 13 of the Texas Constitution and Article 33.01 of the Texas Code of Criminal Procedure.

STATE'S RESPONSE TO APPELLANT'S THREE ISSUES

Even assuming error, the trial court properly denied the motion for new trial.

The alleged error did not contribute to the conviction or punishment.

Here, evidence which permits no rational conclusion other than guilt, combined with a separate and errorless jury finding that Appellant exercised more control over the gun than was needed to convict, along with twelve affirmations of individual verdicts at polling, and a juror affidavit confirming that the alternate's participation did not influence the outcome, collectively mean that the Trial Court acted well within its discretion by denying Appellant's Motion for New Trial on the basis that "**the error was harmless**" and the actions of the alternate juror did not have "**an adverse affect on the guilty verdict returned by the other 12 individuals.**" (5 RR 26) (emphasis added).

Thus, all three of Appellant's issues are without merit and should be overruled.

PRAYER

Wherefore, premises considered, the State of Texas respectfully prays that the judgment of the Trial Court be in all things affirmed.

Respectfully submitted,

JARVIS PARSONS
DISTRICT ATTORNEY
BRAZOS COUNTY, TEXAS
/s/ Ryan Calvert
Assistant District Attorney
State Bar No.24036308
rcalvert@brazoscountytx.gov

CERTIFICATE OF SERVICE

I do hereby certify that a true and correct copy of the above and foregoing State's Brief was emailed to Lane Thibodeaux, Attorney for Appellant, at lanet1@msn.com on this the 24th day of October, 2022.

/s/ Ryan Calvert
Ryan Calvert
Assistant District Attorney

CERTIFICATE OF COMPLIANCE

I do hereby certify that the foregoing document has a word count of 11,214 based on the word count program in Word 2013.

/s/ Ryan Calvert

Ryan Calvert

Assistant District Attorney

CERTIFICATE OF SERVICE

I do hereby certify that a true and correct copy of the above and foregoing State's Brief was emailed to Lane Thibodeaux, Attorney for Appellant, at lanet1@msn.com on this the 24th day of October, 2022.

/s/ Ryan Calvert

Ryan Calvert

Assistant District Attorney

CERTIFICATE OF COMPLIANCE WITH TEX. R. APP. P. 9.4

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/s/ Ryan Calvert

Ryan Calvert

Assistant District Attorney